

Imrit @ Amrit Bind v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 6 February 2020 · WRIT - C No. 2276 of 2020 · WRIT - C No. - 2276 of 2020 · **Writ disposed; EE speaking order; s.127 left open.**

HEADNOTE

Writ seeking certiorari to quash an electricity demand/recovery notice was disposed without examining the demand. The consumer was directed to appear before the Executive Engineer with objections and evidence; the Engineer was to pass a speaking final order after considering those objections. Coercive action was stayed for a limited period. The department was directed to supply the provisional assessment and inspection report. If aggrieved by the final order, the consumer was left to appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Imrit alias Amrit Bind challenged an electricity demand and recovery notice dated 12 September 2019 issued by the Executive Engineer, and the recovery proceedings that followed. He alleged that the electricity department was taking coercive action without an opportunity of hearing and without following the Uttar Pradesh Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard on the writ seeking certiorari to quash the notice and the recovery.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then s.127 appeal

HOLDING

A writ against an electricity demand/recovery notice is disposed by directing the consumer to appear before the Executive Engineer with objections and evidence; the Engineer shall then pass a speaking and reasoned final order after considering those objections, within four weeks. The department shall supply the provisional assessment and inspection report. Coercive action is stayed for eight weeks or until disposal of the objection, whichever is earlier, and the stay (and the citation's abeyance) stands vacated if the consumer defaults in appearing or filing the objection. If aggrieved by the final order, the consumer may appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the demand/recovery notice, the Court left the petitioner to a Section 127 appeal if aggrieved by that final order, without deciding the demand on merits. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Executive Engineer was directed to pass a speaking final order on the objections; only against that final order was the consumer remitted to the Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 12.09.2019 DEMAND/RECOVERY NOTICE AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Writ disposed on directions to the Executive Engineer; the demand was neither quashed nor upheld. ¶ 1